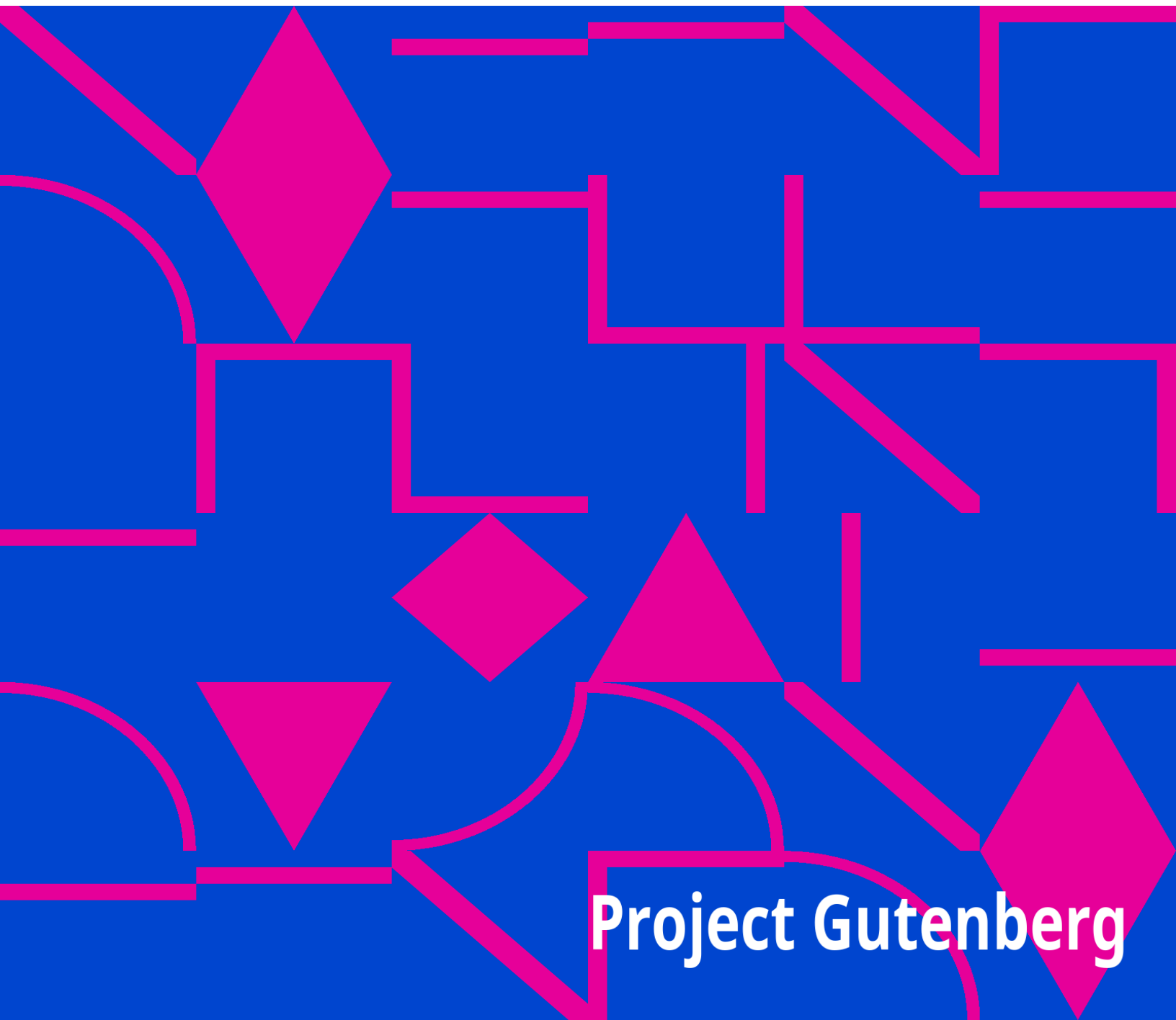


Mademoiselle Olympe Zabriski

Thomas Bailey Aldrich

An abstract geometric pattern on a blue background, featuring various pink shapes including diamonds, triangles, squares, and curved lines.

Project Gutenberg

Mademoiselle Olympe Zabriski

Thomas Bailey Aldrich

A decorative pattern on a blue background consisting of various pink geometric shapes: diamonds, triangles, squares, and arcs, some of which are outlined in pink.

Project Gutenberg

The Project Gutenberg eBook of Mademoiselle Olympe Zabriski

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Mademoiselle Olympe Zabriski

Author: Thomas Bailey Aldrich

Release date: November 6, 2007 [eBook #23362]

Most recently updated: February 24, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/23362

Credits: Produced by David Widger

*** START OF THE PROJECT GUTENBERG EBOOK
MADEMOISELLE OLYMPE ZABRISKI ***

**MADemoiselle OLYMPE
ZABRISKI**

By Thomas Bailey Aldrich

Boston And New York Houghton Mifflin Company

Copyright, 1873, 1885, and 1901

Contents

[I.](#)

[II](#)

.



I.

We are accustomed to speak with a certain light irony of the tendency which women have to gossip, as if the sin itself, if it is a sin, were of the gentler sex, and could by no chance be a masculine peccadillo. So far as my observation goes, men are as much given to small talk as women, and it is undeniable that we have produced the highest type of gossipier extant. Where will you find, in or out of literature, such another droll, delightful, chatty busybody as Samuel Pepys, Esq., Secretary to the Admiralty in the reigns of those fortunate gentlemen Charles II. and James II. of England? He is the king of tattlers as Shakespeare is the king of poets.

If it came to a matter of pure gossip, I would back Our Club against the Sorosis or any women's club in existence. Whenever you see in our drawing-room four or five young fellows lounging in easy-chairs, cigar in hand, and now and then bringing their heads together over the small round Japanese table which is always the pivot of these social circles, you may be sure that they are discussing Tom's engagement, or Dick's extravagance, or Harry's hopeless passion for the younger Miss Fleurdelys. It is here old Tiptleton gets execrated for that everlasting *bon mot* of his which was quite a success at dinner-parties forty years ago; it is here the belle of the season passes under the scalpels of merciless young surgeons; it is here B's financial condition is handled in a way that would make B's hair stand on end; it is here, in short, that everything is canvassed—everything that happens in our set, I mean, much that never happens, and a great deal that could not possibly happen. It was at Our Club that I learned the particulars of the Van Twiller affair.

It was great entertainment to Our Club, the Van Twiller affair, though it was rather a joyless thing, I fancy, for Van Twiller. To understand the case fully, it should be understood that Ralph Van Twiller is one of the proudest and most sensitive men living. He is a lineal descendant of Wouter Van Twiller, the famous old Dutch governor of New York—Nieuw Amsterdam, as it was then; his ancestors have always been burgomasters or admirals or generals, and his mother is the Mrs. Vanrensselaer Van-zandt Van Twiller whose magnificent place will be pointed out to you on the right bank of the

Hudson, as you pass up the historic river towards Idlewild. Ralph is about twenty-five years old. Birth made him a gentleman, and the rise of real estate—some of it in the family since the old governor's time—made him a millionaire. It was a kindly fairy that stepped in and made him a good fellow also. Fortune, I take it, was in her most jocund mood when she heaped her gifts in this fashion on Van Twiller, who was, and will be again, when this cloud blows over, the flower of Our Club.

About a year ago there came a whisper—if the word “whisper” is not too harsh a term to apply to what seemed a mere breath floating gently through the atmosphere of the billiard-room—imparting the intelligence that Van Twiller was in some kind of trouble. Just as everybody suddenly takes to wearing square-toed boots, or to drawing his neckscarf through a ring, so it became all at once the fashion, without any preconcerted agreement, for everybody to speak of Van Twilier as a man in some way under a cloud. But what the cloud was, and how he got under it, and why he did not get away from it, were points that lifted themselves into the realm of pure conjecture. There was no man in the club with strong enough wing to his imagination to soar to the supposition that Van Twiller was embarrassed in money matters. Was he in love? That appeared nearly as improbable; for if he had been in love all the world—that is, perhaps a hundred first families—would have known all about it instantly.

“He has the symptoms,” said Delaney, laughing. “I remember once when Jack Hemming “—

“Ned!” cried Hemming, “I protest against any allusion to that business.”

This was one night when Van Twiller had wandered into the club, turned over the magazines absently in the reading-room, and wandered out again without speaking ten words. The most careless eye would have remarked the great change that had come over Van Twiller. Now and then he would play a game of billiards with De Peyster or Haseltine, or stop to chat a moment in the vestibule with old Duane; but he was an altered man. When at the club, he was usually to be found in the small smoking-room up-stairs, seated on a fauteuil fast asleep, with the last number of *The Nation* in his hand. Once, if you went to two or three places of an evening, you were certain to meet Van Twiller at them all. You seldom met him in society now.

By and by came whisper number two—a whisper more emphatic than number one, but still untraceable to any tangible mouthpiece. This time the

whisper said that Van Twiller was in love. But with whom? The list of possible Mrs. Van Twillers was carefully examined by experienced hands, and a check placed against a fine old Knickerbocker name here and there, but nothing satisfactory arrived at. Then that same still small voice of rumor, but now with an easily detected staccato sharpness to it, said that Van Twiller was in love—with an actress! Van Twiller, whom it had taken all these years and all this waste of raw material in the way of ancestors to bring to perfection—Ralph Van Twiller, the net result and flower of his race, the descendant of Wouter, the son of Mrs. Van-rensselaer Vanzandt Van Twiller—in love with an actress! That was too ridiculous to be believed—and so everybody believed it. Six or seven members of the club abruptly discovered in themselves an unsuspected latent passion for the histrionic art. In squads of two or three they stormed successively all the theatres in town—Booth's, Wallack's, Daly's Fifth Avenue (not burnt down then), and the Grand Opera House. Even the shabby homes of the drama over in the Bowery, where the Germanic Thespis has not taken out his naturalization papers, underwent rigid exploration. But no clue was found to Van Twiller's mysterious attachment. The *opéra bouffe*, which promised the widest field for investigation, produced absolutely nothing, not even a crop of suspicions. One night, after several weeks of this, Delaney and I fancied that we caught sight of Van Twiller in the private box of an up-town theatre, where some thrilling trapeze performance was going on, which we did not care to sit through; but we concluded afterwards that it was only somebody who looked like him. Delaney, by the way, was unusually active in this search. I dare say he never quite forgave Van Twiller for calling him Muslin Delaney. Ned is fond of ladies' society, and that's a fact.

The Cimmerian darkness which surrounded Van Twiller's inamorata left us free to indulge in the wildest conjectures. Whether she was black-tressed Melpomene, with bowl and dagger, or Thalia, with the fair hair and the laughing face, was only to be guessed at. It was popularly conceded, however, that Van Twiller was on the point of forming a dreadful *mésalliance*.

Up to this period he had visited the club regularly. Suddenly he ceased to appear. He was not to be seen on Fifth Avenue, or in the Central Park, or at the houses he generally frequented. His chambers—and mighty comfortable chambers they were—on Thirty-fourth Street were deserted. He had

dropped out of the world, shot like a bright particular star from his orbit in the heaven of the best society.

The following conversation took place one night in the smoking-room:—

“Where’s Van Twiller?”

“Who’s seen Van Twiller?”

“What has become of Van Twiller?”

Delaney picked up the Evening Post, and read—with a solemnity that betrayed young Firkins into exclaiming, “By Jove, now!”—

“Married, on the 10th instant, by the Rev. Friar Laurence, at the residence of the bride’s uncle, Montague Capulet, Esq., Miss Adrienne Le Couvreur to Mr. Ralph Van Twiller, both of this city. No cards.”

“Free List suspended,” murmured De Peyster.

“It strikes me,” said Frank Livingstone, who had been ruffling the leaves of a magazine at the other end of the table, “that you fellows are in a great fever about Van Twiller.”

“So we are.”

“Well, he has simply gone out of town.”

“Where?”

“Up to the old homestead on the Hudson.”

“It’s an odd time of year for a fellow to go into the country.”

“He has gone to visit his mother,” said Livingstone.

“In February?”

“I did n’t know, Delaney, that there was any statute in force prohibiting a man from visiting his mother in February if he wants to.”

Delaney made some light remark about the pleasure of communing with Nature with a cold in her head, and the topic was dropped.

Livingstone was hand in glove with Van Twilier, and if any man shared his confidence it was Livingstone. He was aware of the gossip and speculation that had been rife in the club, but he either was not at liberty or did not think it worth while to relieve our curiosity. In the course of a week or two it was reported that Van Twiller was going to Europe; and go he did. A dozen of us went down to the Scythia to see him off. It was refreshing to have something as positive as the fact that Van Twiller had sailed.

II.

Shortly after Van Twiller's departure the whole thing came out. Whether Livingstone found the secret too heavy a burden, or whether it transpired through some indiscretion on the part of Mrs. Vanrensselaer Vanzandt Van Twiller, I cannot say; but one evening the entire story was in the possession of the club.

Van Twiller had actually been very deeply interested—not in an actress, for the legitimate drama was not her humble walk in life, but—in Mademoiselle Olympe Zabriski, whose really perilous feats on the trapeze had astonished New York the year before, though they had failed to attract Delaney and me the night we wandered into the up-town theatre on the trail of Van Twiller's mystery.

That a man like Van Twiller should be fascinated even for an instant by a common circus-girl seems incredible; but it is always the incredible thing that happens. Besides, Mademoiselle Olympe was not a common circus-girl; she was a most daring and startling gymnaste, with a beauty and a grace of movement that gave to her audacious performance almost an air of prudery. Watching her wondrous dexterity and pliant strength, both exercised without apparent effort, it seemed the most natural proceeding in the world that she should do those unpardonable things. She had a way of melting from one graceful posture into another, like the dissolving figures thrown from a stereopticon. She was a lithe, radiant shape out of the Grecian mythology, now poised up there above the gaslights, and now gleaming through the air like a slender gilt arrow.

I am describing Mademoiselle Olympe as she appeared to Van Twiller on the first occasion when he strolled into the theatre where she was performing. To me she was a girl of eighteen or twenty years of age (maybe she was much older, for pearl-powder and distance keep these people perpetually young), slightly but exquisitely built, with sinews of silver wire; rather pretty, perhaps, after a manner, but showing plainly the effects of the exhaustive drafts she was making on her physical vitality. Now, Van Twiller was an enthusiast on the subject of calisthenics. "If I had a daughter," Van Twiller used to say, "I would n't send her to a boarding-school, or a

nunnery; I 'd send her to a gymnasium for the first five years. Our American women have no physique. They are lilies, pallid, pretty—and perishable. You marry an American woman, and what do you marry? A headache. Look at English girls. They are at least roses, and last the season through.” Walking home from the theatre that first night, it flitted through Van Twiller’s mind that if he could give this girl’s set of nerves and muscles to any one of the two hundred high-bred women he knew, he would marry her on the spot and worship her forever.

The following evening he went to see Mademoiselle Olympe again. “Olympe Zabriski,” he soliloquized, as he sauntered through the lobby—“what a queer name! Olympe is French, and Zabriski is Polish. It is her *nom de guerre*, of course; her real name is probably Sarah Jones. What kind of creature can she be in private life, I wonder? I wonder if she wears that costume all the time, and if she springs to her meals from a horizontal bar. Of course she rocks the baby to sleep on the trapeze.” And Van Twiller went on making comical domestic tableaux of Mademoiselle Zabriski, like the clever, satirical dog he was, until the curtain rose.

This was on a Friday. There was a *matinée* the next day, and he attended that, though he had secured a seat for the usual evening entertainment. Then it became a habit of Van Twiller’s to drop into the theatre for half an hour or so every night, to assist at the interlude, in which she appeared. He cared only for her part of the programme, and timed his visits accordingly. It was a surprise to himself when he reflected, one morning, that he had not missed a single performance of Mademoiselle Olympe for nearly two weeks.

“This will never do,” said Van Twiller. “Olympe”—he called her Olympe, as if she were an old acquaintance, and so she might have been considered by that time—“is a wonderful creature; but this will never do. Van, my boy, you must reform this altogether.”

But half past nine that night saw him in his accustomed orchestra chair, and so on for another week. A habit leads a man so gently in the beginning that he does not perceive he is led—with what silken threads and down what pleasant avenues it leads him! By and by the soft silk threads become iron chains, and the pleasant avenues Avernus!

Quite a new element had lately entered into Van Twiller’s enjoyment of Mademoiselle Olympe’s ingenious feats—a vaguely born apprehension that she might slip from that swinging bar; that one of the thin cords supporting

it might snap, and let her go headlong from the dizzy height. Now and then, for a terrible instant, he would imagine her lying a glittering, palpitating heap at the foot-lights, with no color in her lips! Sometimes it seemed as if the girl were tempting this kind of fate. It was a hard, bitter life, and nothing but poverty and sordid misery at home could have driven her to it. What if she should end it all some night, by just unclasping that little hand? It looked so small and white from where Van Twiller sat!

This frightful idea fascinated while it chilled him, and helped to make it nearly impossible for him to keep away from the theatre. In the beginning his attendance had not interfered with his social duties or pleasures; but now he came to find it distasteful after dinner to do anything but read, or walk the streets aimlessly, until it was time to go to the play. When that was over, he was in no mood to go anywhere but to his rooms. So he dropped away by insensible degrees from his habitual haunts, was missed, and began to be talked about at the club. Catching some intimation of this, he ventured no more in the orchestra stalls, but shrouded himself behind the draperies of the private box in which Delaney and I thought we saw him on one occasion.

Now, I find it very perplexing to explain what Van Twiller was wholly unable to explain to himself. He was not in love with Mademoiselle Olympe. He had no wish to speak to her, or to hear her speak. Nothing could have been easier, and nothing further from his desire, than to know her personally. A Van Twiller personally acquainted with a strolling female acrobat! Good heavens I That was something possible only with the discovery of perpetual motion. Taken from her theatrical setting, from her lofty perch, so to say, on the trapeze-bar, Olympe Zabriski would have shocked every aristocratic fibre in Van Twiller's body. He was simply fascinated by her marvellous grace and *élan*, and the magnetic recklessness of the girl. It was very young in him and very weak, and no member of the Sorosis, or all the Sorosisters together, could have been more severe on Van Twiller than he was on himself. To be weak, and to know it, is something of a punishment for a proud man. Van Twiller took his punishment, and went to the theatre, regularly.

"When her engagement comes to an end," he meditated, "that will finish the business."

Mademoiselle Olympe's engagement finally did come to an end, and she departed. But her engagement had been highly beneficial to the treasury-chest of the up-town theatre, and before Van Twiller could get over missing her she had returned from a short Western tour, and her immediate reappearance was underlined on the play-bills.

On a dead-wall opposite the windows of Van Twiller's sleeping-room there appeared, as if by necromancy, an aggressive poster with Mademoiselle Olympe Zabriski on it in letters at least a foot high. This thing stared him in the face when he woke up, one morning. It gave him a sensation as if she had called on him overnight, and left her card.

From time to time through the day he regarded that poster with a sardonic eye. He had pitilessly resolved not to repeat the folly of the previous month. To say that this moral victory cost him nothing would be to deprive it of merit. It cost him many internal struggles. It is a fine thing to see a man seizing his temptation by the throat, and wrestling with it, and trampling it under foot like St. Anthony. This was the spectacle Van Twiller was exhibiting to the angels.

The evening Mademoiselle Olympe was to make her reappearance, Van Twiller, having dined at the club, and feeling more like himself than he had felt for weeks, returned to his chamber, and, putting on dressing-gown and slippers, piled up the greater portion of his library about him, and fell to reading assiduously. There is nothing like a quiet evening at home with some slight intellectual occupation, after one's feathers have been stroked the wrong way.

When the lively French clock on the mantel-piece—a base of malachite surmounted by a flying bronze Mercury with its arms spread gracefully on the air, and not remotely suggestive of Mademoiselle Olympe in the act of executing her grand flight from the trapeze—when the clock, I repeat, struck nine, Van Twilier paid no attention to it. That was certainly a triumph. I am anxious to render Van Twiller all the justice I can, at this point of the narrative, inasmuch as when the half hour sounded musically, like a crystal ball dropping into a silver bowl, he rose from the chair automatically, thrust his feet into his walking-shoes, threw his overcoat across his arm, and strode out of the room.

To be weak and to scorn your weakness, and not to be able to conquer it, is, as has been said, a hard thing; and I suspect it was not with unalloyed

satisfaction that Van Twiller found himself taking his seat in the back part of the private box night after night during the second engagement of Mademoiselle Olympe. It was so easy not to stay away!

In this second edition of Van Twiller's fatuity, his case was even worse than before. He not only thought of Olympe quite a number of times between breakfast and dinner, he not only attended the interlude regularly, but he began, in spite of himself, to occupy his leisure hours at night by dreaming of her. This was too much of a good thing, and Van Twiller regarded it so. Besides, the dream was always the same—a harrowing dream, a dream singularly adapted to shattering the nerves of a man like Van Twiller. He would imagine himself seated at the theatre (with all the members of Our Club in the parquette), watching Mademoiselle Olympe as usual, when suddenly that young lady would launch herself desperately from the trapeze, and come flying through the air like a firebrand hurled at his private box. Then the unfortunate man would wake up with cold drops standing on his forehead.

There is one redeeming feature in this infatuation of Van Twiller's which the sober moralist will love to look upon—the serene unconsciousness of the person who caused it. She went through her *rôle* with admirable aplomb, drew her salary, it may be assumed, punctually, and appears from first to last to have been ignorant that there was a miserable slave wearing her chains nightly in the left-hand proscenium-box.

That Van Twiller, haunting the theatre with the persistency of an ex-actor, conducted himself so discreetly as not to draw the fire of Mademoiselle Olympe's blue eyes shows that Van Twiller, however deeply under a spell, was not in love. I say this, though I think if Van Twiller had not been Van Twiller, if he had been a man of no family and no position and no money, if New York had been Paris and Thirty-fourth Street a street in the Latin Quarter—but it is useless to speculate on what might have happened. What did happen is sufficient.

It happened, then, in the second week of Queen Olympe's second unconscious reign, that an appalling Whisper floated up the Hudson, effected a landing at a point between Spuyten Duyvel Creek and Cold Spring, and sought out a stately mansion of Dutch architecture standing on the bank of the river. The Whisper straightway informed the lady dwelling in this mansion that all was not well with the last of the Van Twillers; that

he was gradually estranging himself from his peers, and wasting his nights in a play-house watching a misguided young woman turning unmaidenly somersaults on a piece of wood attached to two ropes.

Mrs. Vanrensselaer Vanzandt Van Twiller came down to town by the next train to look into this little matter.

She found the flower of the family taking an early breakfast, at 11 a.m., in his cosy apartments on Thirty-fourth Street. With the least possible circumlocution she confronted him with what rumor had reported of his pursuits, and was pleased, but not too much pleased, when he gave her an exact account of his relations with Mademoiselle Zabriski, neither concealing nor qualifying anything. As a confession, it was unique, and might have been a great deal less entertaining. Two or three times in the course of the narrative, the matron had some difficulty in preserving the gravity of her countenance. After meditating a few minutes, she tapped Van Twiller softly on the arm with the tip of her parasol, and invited him to return with her the next day up the Hudson and make a brief visit at the home of his ancestors. He accepted the invitation with outward alacrity and inward disgust.

When this was settled, and the worthy lady had withdrawn, Van Twiller went directly to the establishment of Messrs Ball, Black, and Company, and selected, with unerring taste, the finest diamond bracelet procurable. For his mother? Dear me, no! She had the family jewels.

I would not like to state the enormous sum Van Twiller paid for this bracelet. It was such a clasp of diamonds as would have hastened the pulsation of a patrician wrist. It was such a bracelet as Prince Camaralzaman might have sent to the Princess Badoura, and the Princess Badoura—might have been very glad to get.

In the fragrant Levant morocco case, where these happy jewels lived when they were at home, Van Twiller thoughtfully placed his card, on the back of which he had written a line begging Mademoiselle Olympe Zabriski to accept the accompanying trifle from one who had witnessed her graceful performances with interest and pleasure. This was not done inconsiderately. "Of course I must enclose my card, as I would to any lady," Van Twiller had said to himself. "A Van Twiller can neither write an anonymous letter nor make an anonymous present." Blood entails its duties as well As its privileges.

The casket despatched to its destination, Van Twiller felt easier in his mind. He was under obligations to the girl for many an agreeable hour that might otherwise have passed heavily. He had paid the debt, and he had paid it *en prince*, as became a Van Twiller. He spent the rest of the day in looking at some pictures at Goupil's, and at the club, and in making a few purchases for his trip up the Hudson. A consciousness that this trip up the Hudson was a disorderly retreat came over him unpleasantly at intervals.

When he returned to his rooms late at night, he found a note lying on the writing-table. He started as his eye caught the words "—— Theatre" stamped in carmine letters on one corner of the envelope. Van Twiller broke the seal with trembling fingers.

Now, this note some time afterwards fell into the hands of Livingstone, who showed it to Stuyvesant, who showed it to Delaney, who showed it to me, and I copied it as a literary curiosity. The note ran as follows:—

Mr. Van Twiller,

Dear Sir—i am verry greatfull to you for that Bracelett. it come just in the nic of time for me. The Mademoiselle Zabriski dodg is about Plaid out. my beard is getting to much for me. i shall have to grow a mustash and take to some other line of busyness, I dont no what now, but will let you no. You wont feel bad if i sell that Bracelett. i have seen Abrahams Moss and he says he will do the square thing. Pleas accep my thanks for youre Beautifull and Unexpected present.

Youre respectfull servent,

Charles Montmorenci Walters.

The next day Van Twiller neither expressed nor felt any unwillingness to spend a few weeks with his mother at the old homestead.

And then he went abroad.

*** END OF THE PROJECT GUTENBERG EBOOK MADEMOISELLE
OLYMPE ZABRISKI ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.